

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1003

Introduced by Meyer, 17.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to consumer protection; to amend section
- 2 87-302, Revised Statutes Supplement, 2025; to adopt the Renewable
- 3 Energy Consumer Protection Act; to provide a deceptive trade
- 4 practice; to provide an operative date; and to repeal the original
- 5 section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Sections 1 to 16 of this act shall be known and may be
2 cited as the Renewable Energy Consumer Protection Act.

3 **Sec. 2.** The Legislature finds and declares that:

4 (1) Renewable energy systems for residential and small business
5 applications are complex and can be confusing to consumers;

6 (2) Electric utility rates can change over time and can affect the
7 payoff period of the initial investment for a renewable energy system;

8 (3) Renewable energy systems for residential and small business
9 applications are major purchases which warrant consumer protection and
10 oversight;

11 (4) Standardized disclosures, contracting, sales materials,
12 warranties, and enforcement requirements will better ensure that Nebraska
13 consumers have the best information available before purchasing or
14 investing in renewable energy systems; and

15 (5) Consumers in Nebraska should be given clear and accurate
16 information regarding the nature of a contract to lease or purchase a
17 renewable energy system as well as information about rebates, warranties,
18 and incentive programs.

19 **Sec. 3.** For purposes of the Renewable Energy Consumer Protection
20 Act:

21 (1)(a) Agreement means an agreement between a renewable energy sales
22 company and a retail electric consumer in the form of:

23 (i) A contract for the purchase of a renewable energy system or
24 battery energy storage system; or

25 (ii) A lease for a third-party-owned renewable energy system or
26 battery energy storage system.

27 (b) Agreement includes a cash or financed purchase of a renewable
28 energy system or battery energy storage system;

29 (2) Battery energy storage system means a system or facility
30 intended for residential or small business applications which:

31 (a) Stores electricity for use at later time;

1 (b) Uses solar energy or wind energy to recharge;

2 (c) Is located on the real property of a customer of an electric
3 utility;

4 (d) Is connected on the customer's side of the electricity meter;
5 and

6 (e) Provides electricity to offset customer load on the customer's
7 real property;

8 (3) Contact information means a physical address, phone number, and
9 email address. A post office box shall not be considered a physical
10 address;

11 (4) Financing agreement means an agreement involving credit offered
12 or extended to a consumer to acquire a renewable energy system or battery
13 energy storage system;

14 (5) Installation company means:

15 (a) An entity, other than the consumer, that installs a renewable
16 energy system or battery energy storage system on behalf of a consumer;
17 or

18 (b) A third party from whom a consumer leases such a system;

19 (6) Lease means a contract in the form of a bailment or lease for
20 the use of a renewable energy system or battery energy storage system by
21 a consumer for a period exceeding four months and for a total contractual
22 obligation not exceeding the applicable threshold amount, pursuant to
23 applicable federal regulations, whether or not the lessee has the option
24 to purchase or otherwise become the owner of the system upon the
25 expiration of the lease;

26 (7) Renewable energy sales company means an entity that engages:

27 (a) In a transaction with a consumer to sell, negotiate, or execute
28 a contract for the sale of a renewable energy system or battery energy
29 storage system; or

30 (b) With a consumer to lease a renewable energy system or battery
31 energy storage system that is owned by a third party from whom the

1 consumer will lease such system;

2 (8) Renewable energy system means a system or facility intended for
3 residential or small business applications which uses solar or wind
4 energy to generate electricity; and

5 (9) Salesperson means an employee or independent contractor of a
6 renewable energy sales company who solicits, sells, negotiates, or
7 executes agreements for renewable energy systems or battery energy
8 storage systems.

9 **Sec. 4.** (1) At least thirty days before entering into an agreement
10 with a consumer for a renewable energy system or battery energy storage
11 system, a renewable energy sales company shall provide to the consumer a
12 written disclosure form that is five pages or less in length and contains
13 the following information, in a font no smaller than twelve points:

14 (a) The name of the renewable energy sales company and contact
15 information for the president or chief executive officer of the company;

16 (b) The name of the installation company and contact information for
17 the president or chief executive officer of the company;

18 (c) The name of the system maintenance provider and contact
19 information for the president or chief executive officer of the provider;

20 (d) The payment schedule for up-front costs, including payments due
21 at the signing date of the agreement and the commencement and completion
22 dates of the installation;

23 (e) System design assumptions, including system size, estimated
24 first-year production, estimated annual system production degradation,
25 presence of energy storage, energy storage capacity, and a description of
26 the equipment needed to provide backup power;

27 (f) An explanation of the maintenance, operation, and monitoring
28 requirements of the renewable energy system or battery energy storage
29 system, including an explanation of equipment and labor warranties and
30 maintenance and repair costs for which the consumer shall be responsible;

31 (g) Warranties for the repair of all components and parts of the

1 renewable energy system or battery energy storage system and warranties
2 covering damages to all components and parts of such system, including a
3 statement that solar panels installed on rooftops may only be authorized
4 for removal by the renewable energy system sales company, that any
5 unauthorized removal of a solar panel from a rooftop may void the
6 warranty, and that any replacement or reinstallation of a solar panel on
7 a rooftop shall require reinspection by a certified state or municipal
8 electrical inspector;

9 (h) Costs and liability for the installation and removal of the
10 renewable energy system or battery energy storage system;

11 (i) A description of performance or production guarantees;

12 (j) Any potential environmental hazards which may affect the quality
13 of the air, water, land, crops, human beings, livestock, or wildlife on
14 the land associated with the renewable energy system or battery energy
15 storage system and within a range of one mile from the perimeter of the
16 system;

17 (k) A description of the basis for any cost-savings estimates that
18 were provided to the consumer. Such description shall include the
19 applicable utility rates and energy delivery costs, any expected utility
20 bill savings based upon the consumer's prior twelve months of utility
21 bills, and the estimated system production at the time of contract
22 signing;

23 (l) The potential availability of renewable energy credits,
24 including an explanation of what renewable energy credits are and how to
25 find out more about them;

26 (m) The operational capabilities of the renewable energy system or
27 battery energy storage system during an electrical outage;

28 (n) A statement indicating that the renewable energy sales company
29 is not affiliated with a utility; and

30 (o) An explanation of any real property access rights required by
31 the renewable energy sales company or the local utility.

1 (2) At least thirty days before entering into an agreement with a
2 consumer for a renewable energy system or battery energy storage system,
3 a renewable energy sales company shall provide a consumer with the
4 following written statements on separate forms in a font no smaller than
5 twelve points:

6 (a) Estimates of cost savings are based upon calculations from the
7 previous twelve months of utility bills, or, if twelve months of utility
8 bills are not available, a reasonable estimate of cost savings. The
9 assumptions, such as the rates a utility charges for electricity, that
10 are used to estimate the cost savings may change. There may be utility
11 fees that cannot be offset with a renewable energy system or battery
12 energy storage system, and, under certain circumstances, compensation for
13 excess electricity sent back to the grid may be credited to your bill by
14 the utility at rates below what you pay for electricity; and

15 (b) The interconnection procedures for a renewable energy system or
16 battery energy storage system are subject to the policies of the local
17 utility. For information on the specific interconnection policies and
18 procedures for a renewable energy system or battery energy storage
19 system, the consumer should contact the local utility.

20 (3) In the case of a lease for a renewable energy system or battery
21 energy storage system in which the renewable energy sales company is the
22 lessor, at least thirty days before entering into an agreement with a
23 consumer, the company shall provide the consumer with the written
24 disclosure form pursuant to subsection (1) of this section with the
25 following additional information on five additional pages or less in a
26 font no smaller than twelve points:

27 (a) The length of the lease;

28 (b) The amount of each monthly payment for the first year of the
29 lease;

30 (c) The estimated total amount of lease payments over the length of
31 the lease;

1 (d) The rate of any payment increases and the date of the first
2 increase, if applicable;

3 (e) The total number of lease payments;

4 (f) Payment due dates and the manner in which the consumer shall
5 receive invoices;

6 (g) A disclosure notifying the consumer whether the lessor will be
7 filing a Uniform Commercial Code fixture filing on the renewable energy
8 system or battery energy storage system and the impact on any future sale
9 of the real property;

10 (h) A disclosure describing the transferability of the lease and the
11 conditions for lease transfers in connection with a consumer selling the
12 real property; and

13 (i) An explanation of any real property access rights required by
14 the lessor.

15 (4) In the case of a purchase of a residential renewable energy
16 system or battery energy storage system, at least thirty days before
17 entering an agreement with a consumer, a renewable energy sales company
18 shall provide a consumer with the written disclosure form pursuant to
19 subsection (1) of this section with the following additional information
20 on three additional pages or less in a font no smaller than twelve
21 points:

22 (a) The purchase price;

23 (b) Estimated start and completion dates for installation,
24 accompanied by the following statement: Start and completion dates are
25 only an estimate and may be impacted by delays that may be outside the
26 control of the renewable energy installation company;

27 (c) A disclosure notifying the consumer of the party or parties
28 responsible for obtaining interconnection approval;

29 (d) The following statement: Laws and regulations about state and
30 federal tax credits are subject to change. Any statement made in these
31 disclosures should not be construed as tax advice. The purchaser of a

1 renewable energy system or battery energy storage system is hereby
2 encouraged to consult a tax expert regarding any reductions or potential
3 reductions in tax liability associated with purchasing a renewable energy
4 system or battery energy storage system; and

5 (e) A link to the local utility's webpage which contains information
6 explaining the utility's interconnection procedures.

7 **Sec. 5.** (1) A contract for the sale or lease of a renewable energy
8 system or battery energy storage system shall:

9 (a) Include in conspicuous language, key contract terms such as
10 price and financing terms;

11 (b) Be written in English; and

12 (c) Include a dispute resolution process where the resolution
13 process includes a third-party arbitrator agreed upon by the customer and
14 where any relevant arbitration hearings take place in person within the
15 county where the renewable energy system or battery energy storage system
16 was installed. Whenever a dispute, including any attempt to reclaim
17 property or discontinue service, is initiated by the renewable energy
18 system sales company or an agent of such company, notice of the dispute
19 shall be sent to the customer or lessee by registered mail no fewer than
20 sixty days prior to the start date of the resolution process and the
21 notice shall include an explanation of the disputed contractual
22 obligations or conditions, the reasons for the dispute, the date that the
23 resolution process shall begin, any costs to be incurred by the customer,
24 and an explanation of the customer's rights.

25 (2) An agreement for the sale of a renewable energy system or a
26 battery energy storage system shall contain the following information:

27 (a) The name of the renewable energy sales company and contact
28 information for the president or chief executive officer of the company;

29 (b) The name of the installation company and contact information for
30 the president or chief executive officer of the company; and

31 (c) The name of and contact information for the sales person

1 associated with the renewable energy sales company who sold, solicited,
2 or negotiated the sale of the renewable energy system or battery energy
3 storage system.

4 (3) A salesperson who sells, solicits, or negotiates a sales
5 agreement shall disclose the following information to the consumer at
6 least sixty days before a purchase agreement may be made:

7 (a) The purchase price of the renewable energy system or battery
8 energy storage system;

9 (b) The payment schedule, if applicable;

10 (c) A description of the project, including the system size
11 expressed in kilowatts of direct current electricity and kilowatts of
12 alternating current electricity and any solar module, inverter, or
13 battery energy storage system to be installed;

14 (d) The estimated start and completion dates for installation
15 accompanied by the following statement: The actual start and completion
16 dates depend upon many factors, such as delays related to permitting and
17 interconnection approvals. Interconnection approvals are controlled by
18 the local utility;

19 (e) An explanation of any warranties or guarantees, including the
20 transferability of any obligations, in compliance with the Magnuson-Moss
21 Warranty-Federal Trade Commission Improvements Act, 15 U.S.C. 2301 et
22 seq.;

23 (f) The name and contact information of the local utility; and

24 (g) A statement indicating which party or parties are responsible
25 for filing the interconnection application as well as applications for
26 any other related permits.

27 (4) A salesperson who sells, solicits, or negotiates a lease
28 agreement shall disclose the following information to the consumer at
29 least sixty days before a lease agreement may be made:

30 (a) The name and contact information of the lessor, the renewable
31 energy system or battery energy storage system manufacturer, the

1 installation company, and the salesperson who negotiated the lease
2 agreement;

3 (b) The method or methods of communication to be used by the
4 salesperson to contact the consumer;

5 (c) The total payments required pursuant to the lease and the
6 payment schedule, including the number, amount, and due dates or periods
7 of payments;

8 (d) A description of the project, including the system size
9 expressed in kilowatts of direct current electricity and kilowatts of
10 alternating current electricity and any solar module, inverter, or
11 battery energy storage system to be installed;

12 (e) The estimated start and completion dates for installation
13 accompanied by the following statement: The actual start and completion
14 dates depend upon many factors, such as delays related to permitting and
15 interconnection approvals. Interconnection approvals are controlled by
16 the local utility;

17 (f) An explanation of any warranties or guarantees, including the
18 transferability of any obligations in compliance with the Magnuson-Moss
19 Warranty-Federal Trade Commission Improvements Act, 15 U.S.C. 2301 et
20 seq.;

21 (g) A description of the maintenance and repair responsibilities of
22 each party;

23 (h) An explanation of whether the consumer has the right to purchase
24 the leased renewable energy system or battery energy storage system,
25 either during the lease term or at the termination of the lease, and, if
26 applicable, the purchase price;

27 (i) A description of the consumer's options to transfer the lease to
28 a third party and the conditions for such transfer;

29 (j) Which party or parties are responsible for filing the
30 interconnection application and permits as well as applications for any
31 other related permits;

1 (k) A description of any security interest filed against the system,
2 including Uniform Commercial Code financing statements; and

3 (l) Any real property access rights to be obtained by the lessor.

4 (5) In the case of the sale of a renewable energy system or battery
5 energy storage system, the sales agreement shall include:

6 (a) A statement indicating that the consumer has five business days
7 after receiving the initial signed agreement to cancel the agreement
8 without a financial penalty, with the exception of any nonrefundable
9 deposits collected before receipt of the signed sales agreement, in an
10 amount not to exceed one hundred dollars;

11 (b) A statement indicating that the seller has verbally explained to
12 the consumer the consumer's right to rescind the agreement without
13 financial penalty upon the consumer signing the agreement and that the
14 consumer has been verbally provided with the specific date that the sales
15 agreement may be cancelled without financial penalty, with the exception
16 of any nonrefundable deposits collected;

17 (c) The following statement in a bold font no smaller than twelve
18 points adjacent to the signature line: The purchaser may cancel this
19 transaction at any time prior to midnight in the time zone where the
20 renewable energy system or battery energy storage system is to be
21 installed on the fifth business day after the date of this transaction
22 provided that the cancellation notice is sent to the president, chief
23 executive officer, or salesperson of the renewable energy sales company
24 or the president or chief executive officer of the installation company,
25 and that the proof of the date or time of the cancellation notice may be
26 verified by way of a receipt showing that the cancellation notice was
27 sent by way of certified mail, registered mail, or by professional
28 courier service, or by evidence that the cancellation notice was sent
29 through email before time expired for the cancellation period;

30 (d) A cancellation form written in the same format as in federal
31 regulations regarding cooling-off periods for sales made for homes or

1 other locations; and

2 (e) A statement showing that compliance with federal regulations
3 adopted under the Federal Trade Commission Act of 1914, 15 U.S.C. 41 et
4 seq., regarding cooling-off periods for sales made at homes or at other
5 locations constitutes compliance with this subsection (5).

6 **Sec. 6.** If a renewable energy system or battery energy storage
7 system is financed, the financing documents shall include the following:

8 (1) The length, terms, and cost of the financing agreement in clear
9 and conspicuous language;

10 (2) A statement that a salesperson may be employed by more than one
11 renewable energy sales company; and

12 (3) A notification of any security interest filed against the
13 system, including Uniform Commercial Code financing statements.

14 **Sec. 7.** (1) An independent contractor may be retained by a
15 renewable energy sales company as a salesperson. Notwithstanding the
16 salesperson's status as an independent contractor, the renewable energy
17 sales company that employs the independent contractor as a salesperson is
18 responsible for ensuring compliance with the Renewable Energy Consumer
19 Protection Act and for any loss or damages resulting from noncompliance
20 by the independent contractor when acting on behalf of the renewable
21 energy sales company.

22 (2) A salesperson may be employed by more than one renewable energy
23 sales company.

24 (3) Unless otherwise authorized in a state law or local government
25 ordinance or invited by consumer, a salesperson shall not visit a
26 residence to conduct the sale of a renewable energy storage system or
27 battery energy storage system except between the hours of 9 a.m. and 8
28 p.m. within the time zone of the consumer.

29 (4) A salesperson shall not visit a residence that has posted a no
30 solicitation sign in a prominent location near the main entrance to the
31 residence.

1 **Sec. 8.** (1) For purposes of this section, written or digital sales
2 material means an online sales banner, click-through banner, social media
3 advertisement, pamphlet, booklet, and any other materials that could
4 generate a sale or sale lead of a renewable energy system or a battery
5 energy storage system, whether such material is delivered in person,
6 through the United States Postal Service, through a private courier
7 service, through email, or through other online means.

8 (2) Renewable energy sales companies and salespersons for renewable
9 energy sales companies are prohibited from:

10 (a) Providing written, video, photographic, or digital sales
11 material for a renewable energy system or battery energy storage system
12 which includes a name, logo, picture, or other indicia of an electric
13 utility unless the renewable energy sales company or the salesperson has
14 received expressed written consent to provide such material from the
15 relevant utility;

16 (b) Purchasing sales leads from a renewable energy sales company
17 which fails to comply with the requirements of this section;

18 (c) Representing, verbally or in writing, that the renewable energy
19 sales company is affiliated with, sponsored by, or approved by a
20 consumer's local utility without the expressed written consent of the
21 local utility; and

22 (d) Representing, verbally or in writing, that the renewable energy
23 sales company is affiliated with, sponsored by, or approved by a state
24 incentive program without the expressed written consent of the agency in
25 charge of administering such incentive program.

26 **Sec. 9.** (1) A renewable energy sales company, a salesperson
27 representing a renewable energy sales company, and any other person
28 designated to represent a renewable energy sales company for an agreement
29 shall retain a copy of each signed agreement and any warranties for a
30 period of at least ten years after the date of the transaction.

31 (2) A consumer's personal information is confidential.

1 **Sec. 10.** (1) Within three days after entering into an agreement, a
2 renewable energy sales company, a salesperson, or a designated
3 representative of the renewable energy sales company shall conduct an in-
4 person welcome call with the new consumer.

5 (2) The welcome call shall include the following information:

6 (a) Confirmation of the identification of the consumer;

7 (b) The price of the renewable energy system or battery energy
8 storage system;

9 (c) A description of the project, including the system size
10 expressed in kilowatts of direct current electricity and kilowatts of
11 alternating current electricity, any battery energy storage system to be
12 installed and the capacity of such system expressed in kilowatt-hours,
13 and a statement that the renewable energy system will not provide backup
14 power without being paired with a battery energy storage system;

15 (d) In the case of a lease, the duration of the contract;

16 (e) A statement indicating the consumer's right to cancel the
17 agreement without financial penalty within five days after signing the
18 contract;

19 (f) A reminder that the consumer should review the disclosure form
20 and agreement before the end of the fifth day after signing the contract;
21 and

22 (g) An explanation of the costs of the system being installed and
23 any other applicable financing terms or details.

24 **Sec. 11.** (1) A renewable energy sales company shall provide the
25 consumer with a warranty against roof damage and water infiltration
26 whenever roof penetration is made for the installation of a renewable
27 energy system or battery energy storage system and such warranty shall be
28 for a period of at least five years after the completion date of the
29 installation.

30 (2) A renewable energy sales company shall provide the consumer with
31 a warranty addressing defects in the workmanship of a renewable energy

1 system or battery energy storage system and such warranty shall be for a
2 period of at least five years after the completion date of the
3 installation.

4 (3) If a renewable energy sales company provides the consumer with a
5 long-term maintenance plan for a renewable energy system or a battery
6 energy storage system, such plan shall be made available to the consumer
7 in writing and verbally. If a renewable energy sales company does not
8 provide such a plan, the renewable energy sales company shall provide the
9 consumer with a written explanation as to why a long-term maintenance
10 plan is not being offered or provided.

11 **Sec. 12.** A violation of the Renewable Energy Consumer Protection
12 Act shall constitute a deceptive trade practice under the Uniform
13 Deceptive Trade Practices Act and shall be subject to any remedies or
14 penalties available for a violation of such act.

15 **Sec. 13.** An electric utility that serves more than five thousand
16 meters that offers financial incentives for renewable energy systems or
17 battery energy storage systems shall clearly and prominently provide the
18 following information on the utility's website:

19 (1) Information on the number of financial incentives available for
20 such systems, including information about the amount of budget that has
21 already been spent to date and information about when the budget was last
22 updated;

23 (2) Information about how a customer or contractor can apply for the
24 financial incentives; and

25 (3) Information about the point in the process in which a customer
26 may secure financial incentives from a utility program.

27 **Sec. 14.** A renewable energy sales company or agent of such company
28 shall not sell or lease a renewable energy system or battery energy
29 storage system in this state without first registering their business
30 with the Secretary of State. Any such company or agent shall disclose
31 proof of registration with the Secretary of State to the customer before

1 entering into an agreement. Failure to disclose proof of registration
2 before entering into an agreement shall render the agreement void.

3 **Sec. 15.** (1) A person shall not install a renewable energy system
4 or a battery energy storage system in this state unless such person is
5 licensed as an electrical contractor in Nebraska.

6 (2) A renewable energy system or battery energy storage system shall
7 not be installed without first acquiring a relevant permit from the
8 municipality where the system is to be installed or from the State of
9 Nebraska.

10 **Sec. 16.** The State Electric Board shall adopt and promulgate rules
11 and regulations for the licensing and bonding of any person who installs
12 renewable energy systems or battery energy storage systems in this state.

13 **Sec. 17.** Section 87-302, Revised Statutes Supplement, 2025, is
14 amended to read:

15 87-302 (a) A person engages in a deceptive trade practice when, in
16 the course of his or her business, vocation, or occupation, he or she:

17 (1) Passes off goods or services as those of another;

18 (2) Causes likelihood of confusion or of misunderstanding as to the
19 source, sponsorship, approval, or certification of goods or services;

20 (3) Causes likelihood of confusion or of misunderstanding as to
21 affiliation, connection, or association with, or certification by,
22 another;

23 (4) Uses deceptive representations or designations of geographic
24 origin in connection with goods or services;

25 (5) Represents that goods or services have sponsorship, approval,
26 characteristics, ingredients, uses, benefits, or quantities that they do
27 not have or that a person has a sponsorship, approval, status,
28 affiliation, or connection that he or she does not have;

29 (6) Represents that goods or services do not have sponsorship,
30 approval, characteristics, ingredients, uses, benefits, or quantities
31 that they have or that a person does not have a sponsorship, approval,

1 status, affiliation, or connection that he or she has;

2 (7) Represents that goods are original or new if they are
3 deteriorated, altered, reconditioned, reclaimed, used, or secondhand,
4 except that sellers may repair damage to and make adjustments on or
5 replace parts of otherwise new goods in an effort to place such goods in
6 compliance with factory specifications;

7 (8) Represents that goods or services are of a particular standard,
8 quality, or grade, or that goods are of a particular style or model, if
9 they are of another;

10 (9) Disparages the goods, services, or business of another by false
11 or misleading representation of fact;

12 (10) Advertises goods or services with intent not to sell them as
13 advertised or advertises the price in any manner calculated or tending to
14 mislead or in any way deceive a person;

15 (11) Advertises goods or services with intent not to supply
16 reasonably expectable public demand, unless the advertisement discloses a
17 limitation of quantity;

18 (12) Makes false or misleading statements of fact concerning the
19 reasons for, existence of, or amounts of price reductions;

20 (13) Uses or promotes the use of or establishes, operates, or
21 participates in a pyramid promotional scheme in connection with the
22 solicitation of such scheme to members of the public. This subdivision
23 shall not be construed to prohibit a plan or operation, or to define a
24 plan or operation as a pyramid promotional scheme, based on the fact that
25 participants in the plan or operation give consideration in return for
26 the right to receive compensation based upon purchases of goods,
27 services, or intangible property by participants for personal use,
28 consumption, or resale so long as the plan or operation does not promote
29 or induce inventory loading and the plan or operation implements an
30 appropriate inventory repurchase program;

31 (14) With respect to a sale or lease to a natural person of goods or

1 services purchased or leased primarily for personal, family, household,
2 or agricultural purposes, uses or employs any referral or chain referral
3 sales technique, plan, arrangement, or agreement;

4 (15) Knowingly makes a false or misleading statement in a privacy
5 policy, published on the Internet or otherwise distributed or published,
6 regarding the use of personal information submitted by members of the
7 public;

8 (16) Uses any scheme or device to defraud by means of:

9 (i) Obtaining money or property by knowingly false or fraudulent
10 pretenses, representations, or promises; or

11 (ii) Selling, distributing, supplying, furnishing, or procuring any
12 property for the purpose of furthering such scheme;

13 (17) Offers an unsolicited check, through the mail or by other
14 means, to promote goods or services if the cashing or depositing of the
15 check obligates the endorser or payee identified on the check to pay for
16 goods or services. This subdivision does not apply to an extension of
17 credit or an offer to lend money;

18 (18) Mails or causes to be sent an unsolicited billing statement,
19 invoice, or other document that appears to obligate the consumer to make
20 a payment for services or merchandise he or she did not order;

21 (19)(i) Installs, offers to install, or makes available for
22 installation or download a covered file-sharing program on a computer not
23 owned by such person without providing clear and conspicuous notice to
24 the owner or authorized user of the computer that files on that computer
25 will be made available to the public and without requiring intentional
26 and affirmative activation of the file-sharing function of such covered
27 file-sharing program by the owner or authorized user of the computer; or

28 (ii) Prevents reasonable efforts to block the installation,
29 execution, or disabling of a covered file-sharing program;

30 (20) Violates any provision of the Nebraska Foreclosure Protection
31 Act;

1 (21) In connection with the solicitation of funds or other assets
2 for any charitable purpose, or in connection with any solicitation which
3 represents that funds or assets will be used for any charitable purpose,
4 uses or employs any deception, fraud, false pretense, false promise,
5 misrepresentation, unfair practice, or concealment, suppression, or
6 omission of any material fact;

7 (22)(i) In the manufacture, production, importation, distribution,
8 promotion, display for sale, offer for sale, attempt to sell, or sale of
9 a substance:

10 (A) Makes a deceptive or misleading representation or designation,
11 or omits material information, about a substance or fails to identify the
12 contents of the package or the nature of the substance contained inside
13 the package; or

14 (B) Causes confusion or misunderstanding as to the effects a
15 substance causes when ingested, injected, inhaled, or otherwise
16 introduced into the human body.

17 (ii) A person shall be deemed to have committed a violation of the
18 Uniform Deceptive Trade Practices Act for each individually packaged
19 product that is either manufactured, produced, imported, distributed,
20 promoted, displayed for sale, offered for sale, attempted to sell, or
21 sold in violation of this section. A violation under this subdivision (a)
22 (22) shall be treated as a separate and distinct violation from any other
23 offense arising out of acts alleged to have been committed while the
24 person was in violation of this section;

25 (23)(i) Manufactures, produces, publishes, distributes, monetizes,
26 promotes, or otherwise makes publicly available any visual depiction of
27 sexually explicit conduct, any obscene material, or any material that is
28 harmful to minors in which any person depicted as a participant or
29 observer:

30 (A) Is under eighteen years of age;

31 (B) Is a trafficking victim;

1 (C) Has not expressly and voluntarily consented to such person's
2 depiction; or

3 (D) Participated in any act depicted without consent.

4 (ii) This subdivision (a)(23) does not apply to any
5 telecommunications or broadband Internet access service.

6 (iii) For purposes of this subdivision (a)(23):

7 (A) Harmful to minors has the same meaning as in 47 U.S.C. 254, as
8 such section existed on January 1, 2024;

9 (B) Obscene material has the same meaning as in section 28-807;

10 (C) Promote means to use any mechanism or publication, or take any
11 action, that suggests, highlights, advertises, markets, curates,
12 backlinks, hashtags, or otherwise directs, attempts to direct, or
13 encourages traffic toward specific materials, including acts carried out
14 affirmatively, through automation, algorithmically, and via other
15 technical means both known and unknown at this time;

16 (D) Publish means to communicate or make information available to
17 another person via an Internet website, regardless of whether the person
18 consuming, viewing, or receiving the material gives any consideration for
19 the published material;

20 (E) Trafficking victim has the same meaning as in section 28-830;

21 (F) Visual depiction of sexually explicit conduct has the same
22 meaning as in section 28-1802; and

23 (G) Without consent has the same meaning as in section 28-318;

24 (24) Offers or enters into a right-to-list home sale agreement as
25 defined in section 81-885.01; ~~or~~

26 (25) Violates section 81-2,282; or ~~or~~

27 (26) Violates any provision of the Renewable Energy Consumer
28 Protection Act.

29 (b) In order to prevail in an action under the Uniform Deceptive
30 Trade Practices Act, a complainant need not prove competition between the
31 parties.

1 (c) This section does not affect unfair trade practices otherwise
2 actionable at common law or under other statutes of this state.

3 **Sec. 18.** This act becomes operative on January 1, 2027.

4 **Sec. 19.** Original section 87-302, Revised Statutes Supplement,
5 2025, is repealed.